EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 74113/11
Murman DUMBADZE and others
against Georgia

The European Court of Human Rights (Fourth Section), sitting on 7 March 2017 as a Committee composed of:
Krzysztof Wojtyczek, *President,*
Nona Tsotsoria,
Marko Bošnjak, *judges,*
and Andrea Tamietti, *Deputy Section Registrar,*
Having regard to the above application lodged on 24 November 2011,
Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. A list of the applicants is set out in the appendix. They are all Georgian nationals and are represented before the Court by Ms T. Abazadze, a lawyer practising in Tbilisi.

2. The Georgian Government ("the Government") were represented by their Acting Agent, Mrs Sh. Mezurnishvili, of the Ministry of Justice.

3. The application concerned a dispersal of a political protest rally by the special police units on 26 May 2011. All four applicants took part in that rally, and claimed to have been affected by the police abuses, in breach of Articles 3, 10 and 11 of the Convention. These complaints were communicated to the Government on 31 August 2015.

4. On 5 May and 3 June 2016 the Court received declarations signed by both parties, whereby the applicants agreed to have their application struck out of the Court's list of cases against the following acknowledgements and undertakings made by the Government. The Government acknowledged a violation of Article 3 of the Convention in relation to all four applicants and a violation of Article 11 of the Convention in relation to the first, second

and third applicants. In addition, the Government undertook to pay 5,000 euros (five thousand, "EUR") to the first applicant (Mr Dumbadze), EUR 6,000 (six thousand) to the second applicant (Mr Tabatadze), EUR 3,000 (three thousand) to the third applicant (Mr Sanikiani) and EUR 2,000 (two thousand) to the fourth applicant (Mr Gora).

5. The above-mentioned amounts will cover any pecuniary and non-pecuniary damage as well as costs and expenses, and will be converted into the respondent State's national currency at the rate applicable on the date of payment and be free of any taxes that might be applicable to the applicants. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment shall constitute the final resolution of the case.

THE LAW

6. In the light of the above, the Court considers that the matter has been resolved within the meaning of Article 37 § 1 (b) of the Convention and that respect for human rights as defined in the Convention and its Protocols does not require it to continue the examination of the application under Article 37 § 1 *in fine*.

7. Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 30 March 2017.

Andrea Tamietti
Deputy Registrar

Krzysztof Wojtyczek
President

APPENDIX

1. Mr Murman DUMBADZE ("the first applicant") was born on 1 January 1960 and lives in the village of Akhalsheni, Khelvachauri District.

2. Mr Besik TABATADZE ("the second applicant") was born on 1 July 1970 and lives in Tbilisi.

3. Mr Zaza SANIKIANI ("the third applicant") was born on 9 March 1963 and lives in Kutaisi.

4. Mr Andrei GORA ("the fourth applicant") was born on 25 November 1980 and lives in Tbilisi.